FEDERAL REGISTER

Vol. 79 Monday,
No. 66 April 7, 2014

Part II

Department of Transportation

National Highway Traffic Safety Administration

49 CFR Part 571

Federal Motor Vehicle Safety Standards; Rear Visibility; Final Rule

DEPARTMENT OF TRANSPORTATION

National Highway Traffic Safety Administration

49 CFR Part 571

[Docket No. NHTSA–2010–0162]

RIN 2127–AK43

Federal Motor Vehicle Safety Standards; Rear Visibility

AGENCY: National Highway Traffic Safety Administration (NHTSA), Department of Transportation (DOT).

ACTION: Final rule.

SUMMARY: To reduce the risk of devastating backover crashes involving vulnerable populations (including very young children) and to satisfy the mandate of the Cameron Gulbransen Kids Transportation Safety Act of 2007, NHTSA is issuing this final rule to expand the required field of view for all passenger cars, trucks, multipurpose passenger vehicles, buses, and low-speed vehicles with a gross vehicle weight of less than 10,000 pounds. The agency anticipates that today's final rule will significantly reduce backover crashes involving children, persons with disabilities, the elderly, and other pedestrians who currently have the highest risk associated with backover crashes. Specifically, today's final rule specifies an area behind the vehicle which must be visible to the driver when the vehicle is placed into reverse and other related performance requirements. The agency anticipates that, in the near term, vehicle manufacturers will use rearview video systems and in-vehicle visual displays to meet the requirements of this final rule.

DATES: *Effective Date:* This rule is effective June 6, 2014.

Compliance Date: Compliance is required, in accordance with the phase-in schedule, beginning on May 1, 2016. Full compliance is required on May 1, 2018.

Petitions for reconsideration: Petitions for reconsideration of this final rule must be received not later than May 22, 2014.

Incorporation by Reference: The incorporation by reference of certain publications listed in the standard is approved by the Director of the Federal Register as of June 6, 2014.

ADDRESSES: Petitions for reconsideration of this final rule must refer to the docket and notice number set forth above and be submitted to the Administrator, National Highway Traffic Safety Administration, 1200 New Jersey Avenue SE., Washington, DC 20590.

FOR FURTHER INFORMATION CONTACT:

For technical issues: Mr. Markus Price, Office of Vehicle Rulemaking, Telephone: 202–366–0098, Facsimile: 202–366–7002, NVS–121.

For legal issues: Mr. Jesse Chang, Office of the Chief Counsel, Telephone: 202–366–2992, Facsimile: 202–366–3820, NCC–112.

The mailing address for these officials is: National Highway Traffic Safety Administration, 1200 New Jersey Avenue SE., Washington, DC 20590.

SUPPLEMENTARY INFORMATION:

Table of Contents

I. Executive Summary

The Cameron Gulbransen Kids Transportation Safety Act of 2007 (''K.T. Safety Act'' or ''the Act'') directs this agency to amend Federal Motor Vehicle Safety Standard (FMVSS) No. 111 [1] ''to expand the required field of view to enable the driver of a motor vehicle to detect areas behind the motor vehicle to reduce death and injury resulting from backing incidents, particularly incidents involving small children and disabled persons.'' [2] In other words, the K.T. Safety Act requires that this agency conduct a rulemaking to amend FMVSS No. 111 in a manner so as to address a safety risk identified by Congress in the Act—namely, the risk of death and injury that can result from backover crashes. Further, the language chosen by Congress particularly directs the agency to consider crashes involving children and persons with disabilities.

With some variations, the requirements in today's final rule generally adopt the requirements proposed in the NPRM that expand the required field of view in FMVSS No. 111 to include a 10-foot by 20-foot zone directly behind the vehicle.[3] Today's final rule applies these requirements to all passenger vehicles, trucks, buses, and low-speed vehicles [4], with a gross vehicle weight rating (GVWR) of 10,000 pounds or less. Given the currently available information regarding the backover safety risk, the available backing aid technologies, etc., the agency believes that systems fulfilling the requirements adopted by today's final rule are the most effective and the most cost-effective systems available for meeting the safety need specified in the K.T. Safety Act. We believe that the systems meeting the requirements of today's rule also afford the best protection to children and persons with disabilities.

[1] FMVSS No. 111, currently titled ''Rearview mirrors'' is renamed by today's final rule as ''Rear visibility.''

[2] Cameron Gulbransen Kids Transportation Safety Act of 2007, (Public Law 110–189, 122 Stat. 639–642), § 4 (2007).

[3] Prior to adoption of today's rule, the required field of view for passenger vehicles specified that these vehicles have an inside rearview mirror that provides a view from 61 meters behind the vehicle to the horizon. Multipurpose passenger vehicles, trucks and buses with a GVRW of 4,536 kg or less may certify to the passenger car requirements or provide large planar outside mirrors on both the driver's side as well as the passenger's side that provide a view to the rear along the sides of the vehicle. Passenger cars are required to have a planar outside mirror on the driver's side that provides a view to the rear along the side of the vehicle. This rule does not change these field of view requirements from FMVSS No. 111, but adds additional requirements.

[4] A low-speed vehicle is defined as a 4-wheeled vehicle, with a GVWR of less than 3000 lbs, and whose speed attainable in 1 mile on a paved level surface is greater than 20 mph and no greater than 25 mph. *See* 49 CFR Part 571.3. Like all other vehicle types covered under today's final rule, LSVs are required to provide the driver with a rearview image meeting the requirements specified in the regulatory text at the end of this document regardless of whether the vehicle has any significant blind zone. However, like other manufacturers, low-speed vehicle manufacturers can petition NHTSA for an exemption or for rulemaking. The issue of how today's final rule applies to LSVs is discussed in further detail in Section III. b. Applicability, below.

Available Information Continues to Show that the NPRM Approach is the Best Approach

After the proposed rule, the agency received public comments through two separate comment periods and two public meetings. Further, the agency conducted additional research to ensure that the analysis supporting today's final rule is robust. While a significant amount of information has been obtained since the NPRM, none of the additional information supports the agency departing from the general approach proposed in the NPRM. The additional information is useful because it enables the agency to refine its understanding of the technical capabilities of the manufacturers to meet the requirements of today's rule and the relevant costs/benefits of today's rule. Nonetheless, among the various types of rear visibility systems available for study, agency testing and other currently available information support the following claims:

(1) Drivers using rear visibility systems meeting the field of view requirements of today's final rule avoid crashes with an unexpected test object at a statistically significant higher rate than drivers using the standard complement of vehicle equipment.

(2) Such systems (e.g., rearview video systems) consistently outperform other rear visibility systems (e.g., sensors-only or mirror systems) due to a variety of technical and driver-use limitations in those other systems.

(3) Rear visibility systems meeting the requirements of today's rule are the only systems that can meet the need for safety specified by Congress in the K.T. Safety Act (the backover crash risk) because the other systems afford little or no measureable safety benefit.

(4) Systems meeting the requirements of today's final rule are not only the most effective system at addressing the backover crash risk but also the most cost-effective.

Thus, NHTSA's believes that the rear visibility system requirements in today's final rule (expanding the required field of view to include the 20-foot by 10-foot zone immediately behind the vehicle) are the only method for addressing the backover safety risk identified in the K.T. Safety Act that is rationally supported by the totality of the available data.

Recent Market Developments Have Substantially Reduced Costs

The agency's latest analysis has shown that 73% of vehicles covered under today's final rule will be sold with rearview video systems by 2018. This new development in the market means that today's rule will require less change to the market than we had previously anticipated. Assuming the 73% market adoption rate, it would cost $546 to $620 million to equip the remaining 27% of vehicles in 2018 without a rear visibility system. Those systems would also produce $265 to $396 million in monetized benefits.

While we have data to demonstrate what we predict will be the state of the market in 2018, we are unable to determine with any reasonable certainty the precise extent to which other potential events (e.g., the K.T. Safety Act and the rulemaking process) beyond ''pure market forces'' might also be a factor. However, in order to reflect this uncertainty in estimating the likely benefits and costs, NHTSA considered different methods for establishing a baseline market adoption rate of rear visibility systems. The purpose of this analysis was to capture, in addition to the effects of issuing this final rule, the potential effects of the K.T. Safety Act (and the rulemaking process mandated by the Act) upon the rearview video system market adoption. While assessing different alternative baselines is useful in estimating these different market scenarios, all of these analyses continue to show that the approach adopted in today's final rule is the best approach for addressing the backover safety problem.

Accordingly, we have developed an analysis that presents a range of both the benefits and costs of this rule based on a range of adoption rates. At the top-end of the range of adoption rates is the assumption that all current and projected installations are due purely to market forces, meaning that 73% of the new vehicle fleet will be equipped with rearview video systems by 2018. At the low-end of the range of adoption rates, we adopt the assumption that half of the increase in the market adoption trend as a result of the data from MY2014 is attributable to ''pure market forces'' and half is not.[5] Assuming these top and low end estimated adoption trends, the market adoption attributable to ''pure market demand'' in 2018 would be between 59% and 73%. Assuming this range of market adoption, $546 million to $924 million in costs and $265 million to $595 million in monetized benefits are attributable to the final rule, the rulemaking process, and the K.T. Safety Act.

TABLE 1—ESTIMATED COSTS AND BENEFITS UNDER 59% AND 73% MARKET ADOPTION SCENARIOS

	73% Adoption	59% Adoption
Annual Benefits (2010 $)	$265 M to $396 M	$398 M to $595 M
Annual Costs (2010 $)	$546 M to $620 M	$827 M to $924 M

As described in detail, below, and in the Final Regulatory Impact Analysis (FRIA), the agency believes that the top-end assumption is both more likely than the low end (given the strong market incentives in providing rearview video systems) and presents a better picture of the results of issuing today's final rule. Accordingly, for ease of presentation, the discussions of the costs and benefits presented both in this preamble and the FRIA present only those numbers associated with this assumption. However, the agency does present detailed information concerning the costs and benefits of the low-end assumption in Section IV. D. of this preamble and (in more detail) Chapter VIII. D. of the FRIA.

Benefits Are Expected To Be Substantial

This rule is expected to decrease the risks to children, persons with disabilities, and other pedestrians from being injured or killed in a backover crash. Backover crashes are specifically defined as crashes where non-occupants of vehicles (such as pedestrians or cyclists) are struck by vehicles moving in reverse. Our assessment of available safety data indicates that (on average) there are 267 fatalities and 15,000 injuries (6,000 of which are incapacitating[6]) resulting from backover

[5] Further information about these alternative baselines is available in the Final Regulatory Impact Analysis accompanying this document in the docket referenced at the beginning of this document.

[6] The Manual on Classification of Motor Vehicle Traffic Accidents (ANSI D16.1) defines ''incapacitating injury'' as ''any injury, other than

Continued

crashes every year. Of those, 210 fatalities and 15,000 injuries [7] are attributable to backover crashes involving light vehicles (passenger cars, multipurpose passenger vehicles (MPVs), trucks, buses, and low-speed vehicles) with a GVWR of 10,000 pounds or less. Further, the agency has found that children and elderly adults are disproportionately affected by backover crashes. Our data indicate that children under 5 years old account for 31 percent of the fatalities each year, and adults 70 years of age and older account for 26 percent.

Rear visibility systems meeting the requirements of today's final rule are predicted to have an effectiveness of between 28 and 33 percent—substantially higher than other systems (e.g., sensor-only systems) that are currently available. Applying that estimated effectiveness to the latest information on the target population, the aforementioned systems are expected to save 58 to 69 lives each year (not including injuries prevented) once the entire on road vehicle fleet is equipped with systems meeting today's rules requirements (anticipated by approximately 2054).[8] However, because our latest information indicates that as much as 73% of new vehicles sold will have rearview video systems by 2018, the lives saved and injuries prevented by equipping the remaining 27% of vehicles are approximately a quarter of this total. Thus, we believe that there will still be 13–15 fatalities and 1,125–1,332 injuries prevented annually that are a result of equipping the remaining 27% of vehicles that we do not anticipate will have rear visibility systems by 2018.[9] While our estimated annual benefits, beginning in model year 2018, will not be fully realized until 2054, they will increase over time from the phase-in date as vehicles with these systems continue to make up an increasing percentage of the overall vehicle fleet. Taking into account that a larger portion of miles traveled by a given model year is achieved early in the overall life of that model year, we estimate that roughly two thirds of the lifetime benefits for MY2018 will be realized by 2028.

TABLE 2—ESTIMATED ANNUAL QUANTIFIABLE BENEFITS

Benefits	
Fatalities Reduced	13 to 15.
Injuries Reduced	1,125 to 1,332.

In addition to the fatalities and injuries prevented, systems meeting today's final rule are expected to yield benefits over the lifetime of the vehicle as a result of avoiding property damage. While damage to rear visibility systems are a potential source of additional repair cost as a result of rear-end collisions, the agency calculates that these costs will be offset by the benefits realized by vehicle owners as a result of avoiding property-damage-only backing collisions and yield a net benefit [10] between $10 and $13 per vehicle (over the lifetime of the vehicle). In monetary terms, the benefits that are a result from issuing today's final rule (i.e., not counting the systems already being installed by the automakers) are expected to be between $265 and $396 million annually when considering both fatalities/injuries prevented and the property-damage-only collisions avoided.

As the agency is conscious of the costs of today's rule and the costs of rear visibility systems in general, the agency has made every effort to ensure that the benefits of today's rule are as accurately estimated as possible. Thus, various new pieces of information have been incorporated into the analysis in today's final rule that lead to different benefits estimates from those in the NPRM. The major differences include a more refined target population estimate, updated voluntary installation rate information, and more refined system effectiveness estimates. As explained further in this document, additional data from our crash databases [11] enabled the agency to more accurately estimate the size of the target population by sampling a greater number of years of data. Further, new data regarding the rate of adoption of rear visibility systems has enabled the agency to project the rate of adoption through the first full compliance year in today's rule. Finally, the agency was able to conduct additional research since the NPRM to further examine driver use of rear visibility systems by examining a wider range of driver demographics and an additional vehicle type. The additional research adds to the robustness of the agency's analysis of rear visibility system effectiveness through a larger sampling of research participants. While none of the aforementioned new information creates a rational basis for the agency to alter its decision from the NPRM in any significant fashion, the agency believes that it was prudent to ensure that the benefits of today's rule are estimated as accurately as possible due to the costs of this rulemaking required under the K.T. Safety Act. The available information continues to show that rear visibility systems meeting the requirements of this rule are the most effective (and the most cost-effective) systems at addressing the backover safety problem.

Further, the agency notes that there continue to be substantial benefits of this rule that are not easily quantifiable in monetary terms. The agency recognizes that victims of backover crashes are frequently the most vulnerable members of our society (such as young children, the elderly, or persons with disabilities). As these persons often have special mobility needs or are too young to adequately comprehend danger, it seems unlikely that solutions such as increased public awareness or audible backing warnings will be sufficient to prevent the safety risk of backover crashes. Further, the agency recognizes that most people place a high value on the lives of

a fatal injury, which prevents the injured person from walking, driving or normally continuing the activities the person was capable of performing before the injury occurred'' (Section 2.3.4)

[7] Due to rounding, injuries for light vehicles and all vehicles are estimated to be 15,000.

[8] Like all new safety standards, benefits realized from these systems will rise steadily in proportion to the increase of new vehicles meeting the requirements adopted today within the vehicle fleet operating on the public roads. In other words, as new vehicles meeting the new standard replace older vehicles, more vehicles operating on the road will have the new safety countermeasure and more benefits will be realized. As with all standards, it takes time to replace the whole vehicle fleet. While the full rate of annual anticipated benefits will likely not be realized until 2054, the rate of annual benefits will rise each year commensurate with new vehicle sales and the proportion of the miles traveled in those new vehicles.

[9] This figure shows the incremental lives saved and injuries prevented by equipping the remaining 27% of vehicles that are not projected to have rear visibility systems in 2018. It compares what the data show will be the market position for adoption of rearview video systems by 2018 and the 100% compliance requirement in 2018 (established by today's final rule). Because this figure measures what we project the market would (in fact) be in 2018, it does not account for any potential market adoption that is attributable to manufacturers responding to events that are unrelated to ''pure market forces'' (e.g., the passage of the K.T. Safety Act or this rulemaking process). As further explained below, there are a number of reasons why it is especially difficult in the case of this rule to quantify the market adoption that is attributable to the K.T. Safety Act or this rulemaking process. However, we acknowledge that these events may have had an effect on the market adoption of rearview video systems and we have attempted to capture this potential effect below in section IV. *Estimated Costs and Benefits.*

[10] This ''net benefit'' is a comparison between the cost of repairing/replacing damaged rear visibility systems and the benefit of avoiding property damage-only crashes. The costs of the rear visibility system and other benefits of these systems are not taken into account in this ''net benefit.''

[11] The updates that we have incorporated into our analysis include updates to the Fatality Analysis Reporting System (FARS), the National Automotive Sampling System General Estimates System (NASS–GES), and the Not-in-Traffic Surveillance (NiTS) system.

children and that there is a general consensus regarding the need to protect children as they are unable to protect themselves. As backover crash victims are often struck by their immediate family members or caretakers, it is the Department's opinion that an exceptionally high emotional cost, not easily convertible to monetary equivalents, is often inflicted upon the families of backover crash victims.

Costs of Today's Final Rule

The agency acknowledges that the costs of today's rule are significant. We anticipate rear visibility systems will cost approximately $43 to $45 for vehicles already equipped with a suitable visual display and between $132 and $142 for all other vehicles. Accordingly, based on an annual new vehicle fleet of 16.0 million vehicles and considering the number of vehicles we anticipate will already have rear visibility systems by 2018, we believe the costs attributable to equipping the remaining 27% of vehicles (that are not projected to have rear visibility systems in 2018) will range from $546 to $620 million annually.[12]

TABLE 3—ESTIMATED INSTALLATION COSTS

Costs (2010 $)	
Full system installation per vehicle.	$132 to $142.
Camera-only installation per vehicle.	$43 to $45.
Total Fleet	$546 M to $620 M.

In addition to taking steps to ensure that the benefits of today's rule are accurately estimated, the agency also took steps to ensure that the estimated costs of this rule are accurate. Most importantly, two pieces of additional information have enabled the agency to arrive at a more refined estimate of the costs of today's rule that differ from the NPRM. First, the agency has a more robust estimate of the per unit costs of rear visibility systems meeting the requirements of today's rule because the agency performed a tear down study that analyzed the ''bolt-by-bolt'' costs of rear visibility systems and the agency incorporated an analysis of the production savings that occur over time due to efficiencies in the manufacturing process and increases in volume. Second, the aforementioned updated adoption rate of rear visibility systems has been incorporated not only in our analysis of the benefits but also of the costs of today's rule. Based on the aforementioned revised estimates for costs and benefits, the net cost per equivalent life saved for rear visibility systems meeting the requirements of today's final rule ranges from $15.9 to $26.3 million.

TABLE 4—ESTIMATED COST EFFECTIVENESS

Cost per Equivalent Life Saved	
Rearview Video Systems.	$15.9 to $26.3 million*.

*The range presented is from a 3% to 7% discount rate.

TABLE 5—SUMMARY OF BENEFITS AND COSTS PASSENGER CARS AND LIGHT TRUCKS (MILLIONS 2010$) MY2018 AND THEREAFTER [13]

Benefits	Primary estimate	Low estimate	High estimate	Discount rate (%)
Lifetime Monetized	$265	$305	$305	7
Lifetime Monetized	$344	$396	$396	3
Costs:				
Lifetime Monetized	$546	$620	$557	7
Lifetime Monetized	$546	$620	$557	3
Net Impact:				
Lifetime Monetized	−$281	−$315	−$252	7
Lifetime Monetized	−$202	−$224	−$161	3

This Rule is the Least Costly Rule that Meets the Requirements of the K.T. Safety Act

Throughout this rulemaking process, the agency has been sensitive to the costs of today's rule and has sought to ensure that the requirements adopted impose the least amount of regulatory burden on the economy while still achieving Congress' goal of reducing fatalities and injuries resulting from backover crashes. Thus, through the information received by the agency through the comment periods and public workshops, the agency has explored and adopted various methods in order to avoid imposing unnecessary regulatory burdens on the industry and to afford as much flexibility as possible.

Phase-in Schedule

To that end, today's final rule establishes a flexible phase-in schedule that affords the manufacturers the maximum amount of time permitted by the K.T. Safety Act to achieve full compliance (48 months after the publication of this rule). The phase-in schedule established by today's rule, excluding small volume and multi-stage manufacturers, is as follows:

- 0% of the vehicles manufactured before May 1, 2016;
- 10% of the vehicles manufactured on or after May 1, 2016, and before May 1, 2017;
- 40% of the vehicles manufactured on or after May 1, 2017, and before May 1, 2018; and
- 100% of the vehicles manufactured on or after May 1, 2018.[14]

[12] We note that the costs to low-speed vehicles are a small portion (less than 1%) of the vehicle fleet sales each year. We have assumed that the costs to low-speed vehicles to comply with the requirements of today's final rule are the same as other vehicles and taken those costs into account in this estimate.

[13] The different estimates in this chart show some of the different potential technology options. The Primary Estimate is the lowest installation cost option (which assumes manufacturers will use a 130° camera and will utilize any existing display units already offered in their vehicles). The Low Estimate and High Estimate provide the estimated *minimum and maximum net impacts* possible. The Low Estimate is the 180° camera and assumes that manufacturers will install a new display to meet the requirements of today's rule. It represents the minimum overall benefit estimate as it has the largest negative net impact. Conversely, the High Estimate is the 180° camera and assumes that manufacturers that currently offer vehicles with display units are able and choose to use those existing display units to meet the requirements of today's rule. This represents the maximum overall benefit estimate because it has the smallest negative net impact.

[14] As further discussed below, the latest data show that the adoption rate of rearview video systems has increased significantly in recent years. As a result, we anticipate that many manufacturers will be able to meet the phase-in schedule with little adjustment to their current manufacturing plans.

B117–03 (incorporated by reference, see § 571.5) for a period of 24 hours. Allow 1 hour to elapse without spray between the two test cycles.

S14.3.2 *Humidity exposure test procedure.* The external components are subjected to 24 consecutive 3-hour humidity test cycles. In each humidity test cycle, external components are subjected to a temperature of 100°+7° − 0° F (38°+4° − 0° C) with a relative humidity of not less than 90% for a period of 2 hours. After a period not to exceed 5 minutes, the external components are subjected to a temperature of 32° +5° − 0 °F (0° +3° − 0° C) and a humidity of not more than 30% ± 10% for 1 hour. Allow no more than 5 minutes to elapse between each test cycle.

S14.3.3 *Temperature exposure test procedure.* The external components are subjected to 4 consecutive 2-hour temperature test cycles. In each temperature test cycle, the external components are first subjected to a temperature of 176° ± 5 °F (80° ± 3° C) for a period of one hour. After a period not to exceed 5 minutes, the external components are subjected to a temperature of 32° +5° − 0 °F (0° +3° -0° C) for 1 hour. Allow no more than 5 minutes to elapse between each test cycle.

BILLING CODE 4910–59–P

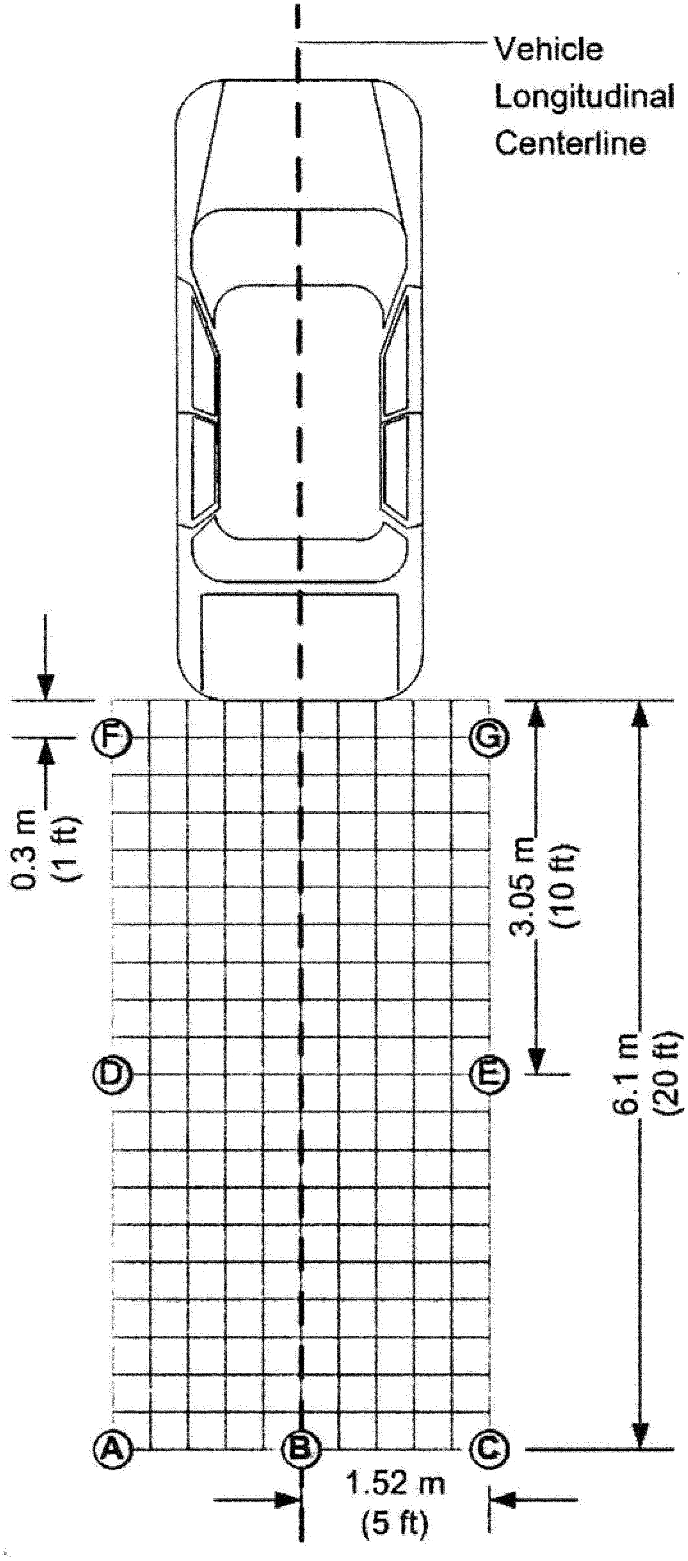

FIGURE 5: TEST CYLINDER LOCATIONS

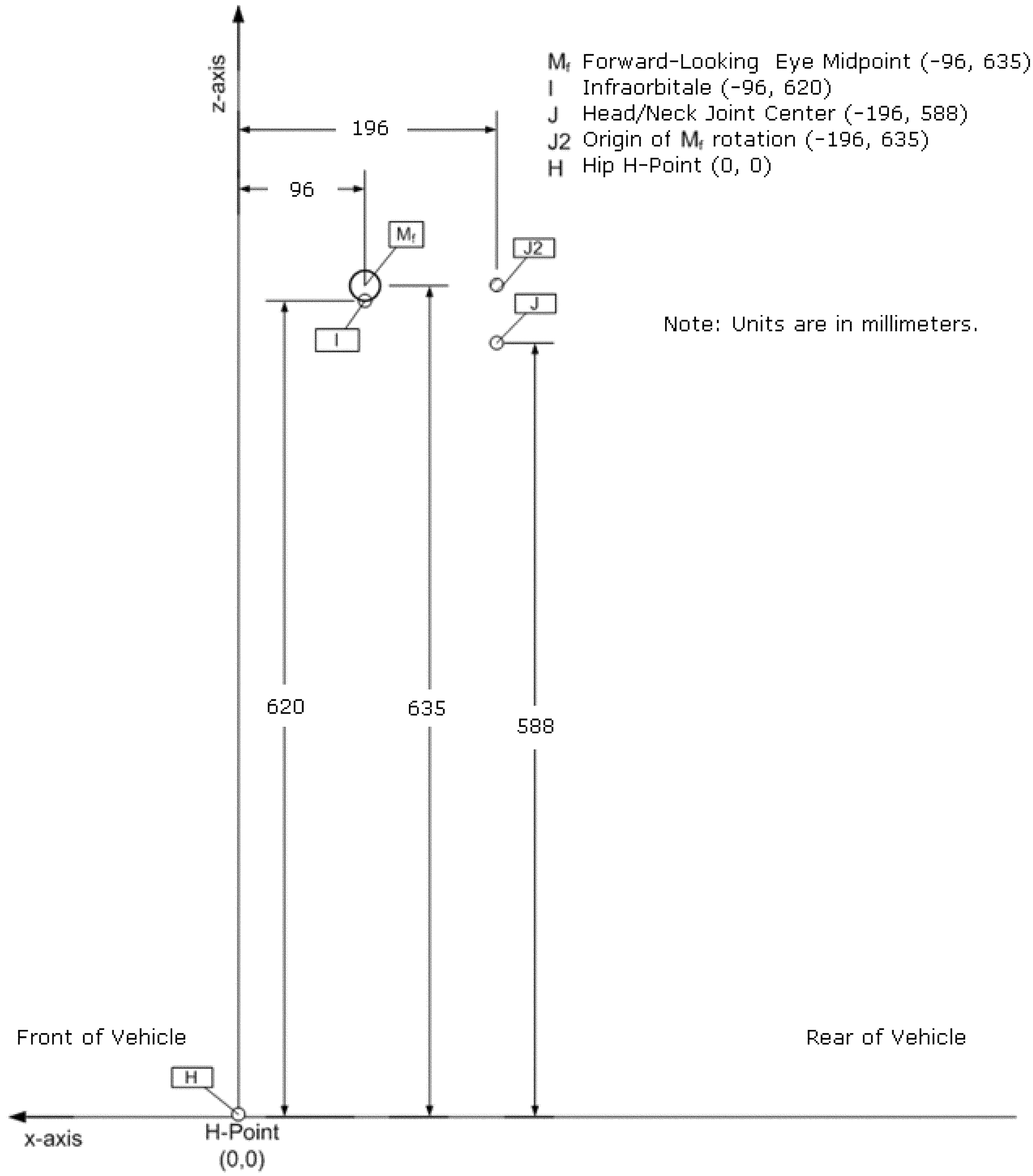

FIGURE 6: EYE MIDPOINT LOCATION (M_f) IN THE MID-SAGITTAL PLANE WITH RESPECT TO H POINT FOR FORWARD-LOOKING 50TH PERCENTILE MALE DRIVER SEATED WITH 25 DEGREE SEAT BACK ANGLE

BILLING CODE 4910–59–C

S15 *Rear visibility phase-in schedule.* For the purposes of the requirements in S15.1 through S15.7, production year means the 12-month period between May 1 of one year and April 30 of the following year, inclusive.

S15.1 *Vehicles manufactured on or after May 1, 2016 and before May 1, 2018.* At any time during or after the production years ending April 30, 2017 and April 30, 2018, each manufacturer shall, upon request from the Office of Vehicle Safety Compliance, provide information identifying the vehicles (by make, model and vehicle identification number) that have been certified as complying with S5.5.1 or S6.2.1 of this standard. The manufacturer's designation of a vehicle as a certified vehicle is irrevocable.

S15.2 *Vehicles manufactured on or after May 1, 2016 and before May 1, 2017.* Except as provided in S15.4, for passenger cars, multipurpose passenger vehicles, trucks, buses, and low-speed vehicles with a GVWR of 4,536 kg or less, manufactured by a manufacturer on or after May 1, 2016, and before May

1, 2017, the number of such vehicles complying with S5.5.1 or S6.2.1 shall be not less than 10 percent of the manufacturer's—

(a) Production of such vehicles during that period; or

(b) Average annual production of such vehicles manufactured in the three previous production years.

S15.3 *Vehicles manufactured on or after May 1, 2017 and before May 1, 2018.* Except as provided in S15.4, for passenger cars, multipurpose passenger vehicles, trucks, buses, and low-speed vehicles with a GVWR of 4,536 kg or less, manufactured by a manufacturer on or after May 1, 2017, and before May 1, 2018, the number of such vehicles complying with S5.5.1 or S6.2.1 shall be not less than 40 percent of the manufacturer's—

(a) Production of such vehicles during that period; or

(b) Average annual production of such vehicles manufactured in the three previous production years.

S15.4 *Exclusions from phase-in.* The following vehicles shall not be subject to the requirements in S15.1 through S15.3 but shall achieve full compliance with this standard at the end of the phase-in period in accordance with S5.5(b) and S6.2(b):

(a) Vehicles that are manufactured by small manufacturers or by limited line manufacturers.

(b) Vehicles that are altered (within the meaning of *49 CFR 567.7*) before May 1, 2017, after having been previously certified in accordance with part 567 of this chapter, and vehicles manufactured in two or more stages before May 1, 2018.

S15.5 *Vehicles produced by more than one manufacturer.* For the purpose of calculating average annual production of vehicles for each manufacturer and the number of vehicles manufactured by each manufacturer under S15.1 through S15.3, a vehicle produced by more than one manufacturer shall be attributed to a single manufacturer as follows, subject to S15.6—

(a) A vehicle that is imported shall be attributed to the importer.

(b) A vehicle manufactured in the United States by more than one manufacturer, one of which also markets the vehicle, shall be attributed to the manufacturer that markets the vehicle.

S15.6 A vehicle produced by more than one manufacturer shall be attributed to any one of the vehicle's manufacturers specified by an express written contract, reported to the National Highway Traffic Safety Administration under 49 CFR part 585, between the manufacturer so specified and the manufacturer to which the vehicle would otherwise be attributed under S15.5.

S15.7 *Calculation of complying vehicles.*

(a) For the purposes of calculating the vehicles complying with S15.2, a manufacturer may count a vehicle if it is manufactured on or after May 1, 2016 but before May 1, 2017.

(b) For purposes of complying with S15.3, a manufacturer may count a vehicle if it is manufactured on or after May 1, 2017 but before May 1, 2018 and,

(c) For the purposes of calculating average annual production of vehicles for each manufacturer and the number of vehicles manufactured by each manufacturer, each vehicle that is excluded from having to meet the applicable requirement is not counted.

■ 4. Section 571.500 is amended by adding S5(b)(11) to read as follows:

§ 571.500 Standard No. 500; Low-speed vehicles.

* * * * *

S5. * * *

(b) * * *

(11) Low-speed vehicles shall comply with the rear visibility requirements specified in paragraphs S6.2 of FMVSS No. 111.

PART 585—PHASE–IN REPORTING REQUIREMENTS

■ 5. The authority citation for part 585 is revised to read as follows:

Authority: 49 U.S.C. 322, 30111, 30115, 30117, and 30166; delegation of authority at 49 CFR 1.95.

■ 6. Add Subpart M to Part 585 to read as follows:

Subpart M—Rear Visibility Improvements Reporting Requirements

Sec.

Subpart M—Rear Visibility Improvements Reporting Requirements

§ 585.121 Scope.

This part establishes requirements for manufacturers of passenger cars, of trucks, buses, multipurpose passenger vehicles and low-speed vehicles with a gross vehicle weight rating (GVWR) of 4,536 kilograms (kg) (10,000 pounds (lb)) or less, to submit a report, and maintain records related to the report, concerning the number of such vehicles that meet the rear visibility requirements in paragraphs S5.5 and S6.2 of Standard No. 111, Rear visibility (49 CFR 571.111).

§ 585.122 Purpose.

The purpose of these reporting requirements is to assist the National Highway Traffic Safety Administration in determining whether a manufacturer has complied with the rear visibility requirements in paragraphs S5.5 and S6.2 of Standard No. 111, Rear visibility (49 CFR 571.111).

§ 585.123 Applicability.

This part applies to manufacturers of passenger cars, of trucks, buses, multipurpose passenger vehicles and low-speed vehicles with a gross vehicle weight rating (GVWR) of 4,536 kilograms (kg) (10,000 pounds (lb)) or less.

§ 585.124 Definitions.

(a) All terms defined in 49 U.S.C. 30102 are used in their statutory meaning.

(b) Bus, gross vehicle weight rating or GVWR, low-speed vehicle, multipurpose passenger vehicle, passenger car, and truck are used as defined in § 571.3 of this chapter.

(c) Production year means the 12-month period between May 1 of one year and April 30 of the following year, inclusive.

§ 585.125 Response to inquiries.

At anytime during the production years ending April 30, 2017, and April 30, 2018, each manufacturer shall, upon request from the Office of Vehicle Safety Compliance, provide information identifying the vehicles (by make, model and vehicle identification number) that have been certified as complying with the rear visibility requirements in paragraphs S5.5 and S6.2 of Standard No. 111, Rear visibility (49 CFR 571.111). The manufacturer's designation of a vehicle as a certified vehicle is irrevocable.

§ 585.126 Reporting requirements.

(a) *Phase-in reporting requirements.* Within 60 days after the end of each of the production years ending April 30, 2017 and April 30, 2018, each manufacturer shall submit a report to the National Highway Traffic Safety Administration concerning its compliance with the rear visibility requirements in paragraphs S5.5 and S6.2 of Standard No. 111 (49 CFR 571.111) for its vehicles produced in that year. Each report shall provide the information specified in paragraph (b) of this section and in § 585.2 of this part.

(b) *Phase-in report content*— (1) *Basis for phase-in production goals.* Each manufacturer shall provide the number of vehicles manufactured in the current production year, or, at the manufacturer's option, in each of the three previous production years. A new manufacturer that is, for the first time, manufacturing vehicles for sale in the United States must report the number of vehicles manufactured during the current production year.

(2) *Production of complying vehicles.* Each manufacturer shall report, for the production year being reported on, information on the number of vehicles that meet the rear visibility requirements in paragraphs S5.5 and S6.2 of Standard No. 111 (49 CFR 571.111).

§ 585.127 Records.

Each manufacturer shall maintain records of the Vehicle Identification Number for each vehicle for which information is reported under § 585.126 until April 30, 2022.

Issued in Washington DC, on March 31, 2014 under authority delegated in 49 CFR part 1.95.

David J. Friedman,

Acting Administrator.

[FR Doc. 2014–07469 Filed 4–1–14; 4:15 pm]

BILLING CODE 4910–59–P